



Deputy Claire Kerrane
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29th July 2026

Dear Deputy Kerrane,

Further to your Parliamentary Question number 206 of 10th June, 2026 and as previously advised, I am providing you with a deferred response in line with Standing Orders 52(1)(b) in relation to your Parliamentary Question:

To ask the Minister for Children, if she will engage with the Minister for Justice, Migration and Home Affairs on the way in which child safeguarding can be strengthened given the details of a case (details supplied) brought forward by a childcare provider; and if she will make a statement on the matter

The Children First Act 2015 provides for a number of key child protection measures, including providing for mandated reporting of child protection concerns above a defined threshold and improving child protection arrangements in organisations providing services to children.

Under this legislation, all providers of relevant services are required to have measures in place to safeguard children attending their services. They must carry out a risk assessment of the potential for any harm to a child while using the service and must have procedures in place to address the risks identified, including in respect the suitability of staff and in respect of staff under any form of investigation.

In addition, under the Children First Act, mandated reporters across a wide range of professions, including teachers, child care workers and medical professionals, are legally required to report to Tusla if they have any knowledge, belief or reasonable



suspicion that a child has been harmed, is being harmed or is at risk of being harmed. Receipt of solicitor's letters or other correspondence does not alter that legal obligation, and mandated reporters should be confident in making good faith reports to Tusla.

The Children First Act operates side-by-side with the non-statutory obligations provided for in Children First: National Guidance for the Protection and Welfare of Children 2017. The Guidance sets out how reports about reasonable concerns of child abuse or neglect should be made by the public and mandated professionals to Tusla and what organisations need to do to keep children safe.

These organisations should develop and put in place specific policies and procedures to create a safe environment, for example, around reporting child protection concerns, recruiting and managing staff and child safeguarding awareness and training.

Tusla has extensive powers under the Child Care Act 1991 and the Child and Family Agency Act 2013 to take appropriate action to promote the welfare of any child who is not receiving adequate care and protection.

Where Tusla suspects that a child has been or is being physically or sexually abused or willfully neglected, An Garda Síochána must be formally notified without delay. This is set out in the Joint Working Protocol for Tusla and An Garda Síochána. There are legal requirements on both individuals and organisations to report criminal abuse of children.

It is also important to note that, even where concerns do not reach a criminal threshold, but where Tusla, as a result of its assessment of a report received, has bona fide concerns in respect of an individual, it must notify the National Vetting Bureau.

Apart from the Children First Act, a number of other policy and legislative improvements have been made to child protection standards within recent years, particularly within early years settings. In line with the requirements of the Child Care Act 1991 (Early Years Services) Regulations 2016, the registered provider, all employees, unpaid workers and contractors in an early years' service, are required to have Garda vetting and police checks for all countries they resided in for longer than six months prior to being allowed access to children. Similar requirements are in place for both school age services and childminders, under the Child Care Act 1991 (Early Years Services) (Registration of School Age Services) Regulations 2018 and the Child Care Act 1991 (Early Years Services) (Childminding Services) Regulations 2024 respectively.

Tusla has developed a process to investigate alleged child abuse case called the 'Child Abuse Substantiation Procedure', CASP. This process has been developed following 20



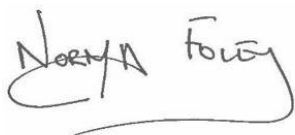
years of legal experience in the courts by Tusla, and Tusla has carefully laid out a set of fair procedures to ensure that children are protected and anyone against whom an allegation is made has the benefit of fair procedures.

A key part of the assessment process is hearing from the person who is making the allegation and allowing them to tell their experience and for the Tusla workers to assess this and put the relevant information to the person against whom the allegation is made. This means that any child who is alleged to have been abused needs to tell their story in a child friendly way to the interviewer. It is important that the interviewer understand and weigh up the context of the allegation and the surrounding circumstances and any possible influences or experiences that might impact on the child's telling about their experiences.

It is important to set out the role that Tusla has in assessing allegations of abuse. When an allegation of abuse is made against a teacher for example, the Agency applies its Child Abuse Substantiation Procedure (CASP).

As the National Vetting Bureau (Child and Vulnerable Persons) Act 2012 comes under the policy remit of the Minister for Justice, Home Affairs and Migration, queries in relation to the operation of the Act should be directed to his department.

Kind regards,



Norma Foley T.D.

Minister for Children, Disability and Equality